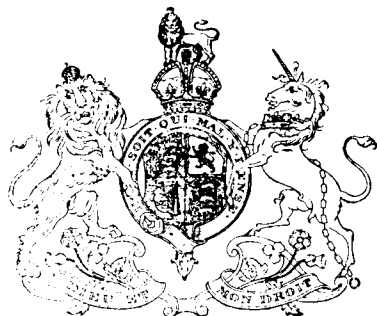




CHAPTER clxxiv.

An Act to transfer the electricity undertaking of the Walker and Wallsend Union Gas Company to the Newcastle-upon-Tyne Electric Supply Company Limited and for other purposes. [11th August 1903.]

A.D. 1903.

WHEREAS the Newcastle-upon-Tyne Electric Supply Company Limited (hereinafter called "the Company") was on the eighth day of January one thousand eight hundred and eighty-nine registered as a company limited by shares under and pursuant to the Companies Acts 1862 to 1886 the objects for which the Company was established being amongst others to act as undertakers for the supply of electricity for lighting and any other purpose within the city of Newcastle-upon-Tyne and elsewhere within the counties of Northumberland and Durham :

And whereas by the Newcastle-upon-Tyne Electric Lighting Order 1893 which was confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1893 which received the Royal Assent on the ninth day of June one thousand eight hundred and ninety-three the Company was authorised to supply electricity for all public and private purposes as defined by the Electric Lighting Act 1882 within the city of Newcastle-upon-Tyne and is now supplying electrical energy within the said city :

And whereas by the Gosforth Extension Electric Lighting Order 1900 confirmed by the Electric Lighting Orders Confirmation (No. 9) Act 1900 which received the Royal Assent on the thirtieth day of July one thousand nine hundred the Company's area of supply was extended so as to include the urban district of Gosforth in the county of Northumberland and the Company is now supplying electrical energy within the said district :

And whereas by the Newcastle-upon-Tyne Electric Supply Company's Act 1900 which received the Royal Assent on the

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Company's Act, 1903.

A.D. 1903. — sixth day of August one thousand nine hundred the Company was authorised to supply electrical energy for all public and private purposes as so defined as aforesaid within the parish of Longbenton in the county of Northumberland and the Company is now supplying electrical energy within the said parish and by the same Act the Company was authorised to enter into agreements with the Walker and Wallsend Union Gas Company (hereinafter called "the Walker Gas Company") and the Walker Urban District Council for the supply of electrical energy in bulk to the Walker Gas Company and the Walker Urban District Council respectively and to enter into agreements with the Walker Gas Company for the purchase and sale or transfer of any of their respective lands or works :

And whereas by the Walker and Wallsend Union Gas Company's (Electric Lighting) Act 1899 the Walker Gas Company was authorised to establish an electricity undertaking and to supply electricity for all public and private purposes within the urban districts of Wallsend and Willington Quay and the parish of Willington in the county of Northumberland and by the Walker and Wallsend Union Gas Company's (Electricity Capital) Act 1900 the Walker Gas Company was authorised to raise additional capital for the purposes of its electricity undertaking :

And whereas in pursuance of the powers conferred upon the Company and the Walker Gas Company in that behalf by the Newcastle-upon-Tyne Electric Supply Company's Act 1900 the generating station erected by the Walker Gas Company on the land described in the First Schedule to the Walker and Wallsend Union Gas Company's (Electric Lighting) Act 1899 was transferred to and is now vested in the Company :

And whereas the Walker Gas Company has created and issued seven thousand and nine ordinary shares of ten pounds each in the capital of their electricity undertaking and the same are fully paid up but has not raised any money on mortgage of the said undertaking :

And whereas the Walker Gas Company has agreed to transfer their electricity undertaking to the Company on the terms hereinafter contained in that behalf and it is expedient that the said undertaking be transferred to the Company accordingly :

And whereas by the Walker Electric Lighting Order 1899 confirmed by the Electric Lighting Orders Confirmation (No. 7) Act 1899 the Walker Urban District Council were authorised to acquire lands and to construct works for the purpose of supplying

[3 EDW. 7.] *Newcastle-upon-Tyne Electric Supply* [Ch. clxxiv.]
Company's Act, 1903.

electrical energy and to supply such energy within their district and the said council have appropriated land and borrowed moneys for the purposes of the said Order and the Company have at their own expense erected a sub-station on the said land : A.D. 1903.

And whereas the Walker Urban District Council have agreed to transfer to the Company their undertaking under the said Order and all rights powers privileges liabilities duties and obligations of the said council under the said Order save and except the liability for moneys borrowed by the said council as aforesaid for the period upon the terms and subject to the conditions appearing in the deed of transfer next hereinafter referred to :

And whereas it is expedient that the deed of transfer bearing date the twenty-seventh day of March one thousand nine hundred and three and made between the Walker Urban District Council and the Company as altered and set forth in the Schedule to this Act be confirmed :

And whereas by the Newcastle-upon-Tyne Electric Supply Company's Act 1902 the Company was authorised to supply electrical energy subject to the provisions and limitations contained in that Act to authorised distributors as defined by that Act and to persons other than authorised distributors within the rural district of Castle Ward the urban district of Newburn the urban district of Benwell and Fenham the urban districts of Cramlington Weetslade Seghill Earsdon Whitley and Monkseaton Cowpen and Blyth the rural district of Tynemouth (with the exception of the parishes of Longbenton and Willington) the borough of Morpeth the urban districts of Newbiggin-by-the-Sea and Bedlingtonshire and the rural district of Morpeth all in the county of Northumberland and was authorised to enter into and carry into effect agreements with any local authority company or person for the supply of energy for use beyond the area of supply defined by that Act within the county of Northumberland and by the same Act the Company was authorised to enter into and carry into effect agreements with the County of Durham Electric Power Supply Company (hereinafter called " the County of Durham Company ") for the supply by the Company to that company of electrical energy for use beyond the said area of supply for any purpose :

And whereas it is expedient that further powers be conferred upon the Company and further provision made for the laying down and construction of works by the Company for conveying or conducting electrical energy from their generating stations to any district or place or to any company body or person which they

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Company's Act, 1903.

A.D. 1903. now are or hereafter may be authorised to supply with electrical energy :

And whereas it is expedient that further provision be made for the laying down of works by the County of Durham Company for the purpose of obtaining electrical energy from or supplying electrical energy to the Company :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Newcastle-upon-Tyne Electric Supply Company's Act 1903.

Act divided
into Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Transfer of Walker Gas Company's electricity undertaking.

Part III.—Agreements.

Part IV.—Connecting mains.

Part V.—Miscellaneous.

Interpreta-
tion.

3. Words terms and expressions to which by the Electric Lighting Act 1882 or the Electric Lighting (Clauses) Act 1899 meanings are assigned have in this Act the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

“The Act of 1899” means the Walker and Wallsend Union Gas Company's (Electric Lighting) Act 1899 ;

“The Act of 1900” means the Walker and Wallsend Union Gas Company's (Electricity Capital) Act 1900 ;

“The undertaking” means the electricity undertaking of the Walker Gas Company authorised by the Act of 1899 and all lands works plant stock-in-trade coal and other stores and all other property real and personal assets and effects and all the powers rights and privileges vested in or belonging

to or had and enjoyed by the Walker Gas Company in connection with the said electricity undertaking and the supply of electricity or energy at the passing of this Act except the buildings for offices and stores and except the registers of shares and transfers and other books and papers relating exclusively to the shares or shareholders of the Walker Gas Company or jointly to the gas and electricity undertakings of that company ;

A.D. 1903.

“The corporation of Newcastle” means the mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne.

PART II.

TRANSFER OF WALKER GAS COMPANY'S ELECTRICITY UNDERTAKING.

4.—(1) On the passing of this Act the undertaking is by virtue of this Act transferred to and vested in the Company and the Company shall maintain and carry on the undertaking and except as hereinafter provided exercise and perform all the powers authorities and duties of the Walker Company authorised and imposed on that company by the Act of 1899 and the principal Act as if the Company had been named therein instead of the Walker Gas Company and such transfer and vesting is hereinafter called “the transfer.”

Transfer of
Walker Gas
Company's
electricity
undertaking
to Company.

(2) The consideration for the transfer shall be the payment by the Company to the Walker Gas Company of the sum of two thousand five hundred pounds and seven thousand and nine fully-paid ordinary shares and seven thousand and nine fully-paid preference shares of the Company each of the nominal value of five pounds such shares to be allotted to and amongst the holders of the shares in the electricity capital of the Walker Gas Company in manner hereinafter directed.

(3) The said sum of two thousand five hundred pounds shall be paid to the Walker Company within twenty-one days after the passing of this Act and the receipt in writing of three directors of that company shall be a sufficient discharge from the same and from being bound to see to the application thereof or from being answerable or accountable for the loss misapplication or non-application thereof and the said sum of money shall be applied by the directors of the Walker Gas Company in payment of compensation to their officials for loss by abolition of office or by diminution

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A.D. 1903. — or loss of salary and any balance remaining over after the payment of such compensation shall be applied for such purposes as the said directors shall determine.

(4) Forthwith after the passing of this Act the directors of the Company shall without any sanction of a general meeting of the Company create and issue to the several persons who immediately before the passing of this Act were the registered holders of the shares in the electricity capital of the Walker Gas Company seven thousand and nine ordinary shares of the Company of five pounds each and seven thousand and nine preference shares of the Company of five pounds each and such ordinary and preference shares shall be considered as part of the capital of the Company and shall be deemed to be fully paid and shall be allotted to and amongst the holders of the shares in the electricity capital of the Walker Gas Company in the proportion of one of such ordinary shares and one of such preference shares for each fully-paid share in such electricity capital held by them respectively and shall be held by them subject to the provisions of the memorandum and articles of association for the time being of the Company.

(5) The said ordinary and preference shares shall be vested in the said persons and be held by them upon the same trusts and subject to the same powers provisions declarations agreements charges and incumbrances as at the passing of this Act affect the shares in respect of which the same are respectively allotted and so as to give effect to and not to revoke any deed or other instrument or any testamentary disposition affecting the same and every such deed or other instrument or disposition shall take effect with reference to the whole or a proportionate part as the case may be of the shares of the Company allotted in respect of the shares in the electricity capital of the Walker Gas Company and from and after the passing of this Act all shares in the electricity capital of the Walker Gas Company shall be and are hereby extinguished and the capital of the Walker Gas Company shall be reduced by the amount of such electricity capital.

(6) The said ordinary and preference shares of the Company allotted as aforesaid shall rank for dividend with the existing ordinary and preference shares of the Company as from the first day of January one thousand nine hundred and three except that no dividend in excess of six pounds per centum per annum shall be paid on the ordinary shares so allotted for a period of two years from that date and shall in other respects be entitled to the same rights privileges and incidents in all respects as the existing

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ordinary shares and preference shares respectively of the Company
 A notice of the limitation of dividend imposed by this section shall
 be endorsed on all certificates issued during the said period of two
 years in respect of the ordinary shares allotted as aforesaid.

A.D. 1903.

5. The transfer shall take effect as on and from the first day
 of January one thousand nine hundred and three and the Walker
 Gas Company shall pay and discharge all debts outgoings and
 liabilities of every kind on revenue account up to that date including
 liabilities to their officials for loss of office or salary by reason of
 the transfer and shall be entitled to receipts on revenue account
 from the undertaking up to but not including that day and where
 necessary for the purpose of giving effect to this section such
 outgoings and receipts shall be apportioned between the Walker
 Gas Company and the Company.

Transfer to
 have effect
 as from first
 of January
 one thousand
 nine hundred
 and three.

6. If at the date of the transfer any action or proceeding or
 any cause of action or proceeding is pending or existing by or against
 the Walker Gas Company in relation to the undertaking the same
 shall not abate or be discontinued or in anywise be prejudicially
 affected by reason of the transfer or of anything in this Act but the
 same shall be continued prosecuted and enforced by or against or in
 favour of the Company as and when it might have been continued
 prosecuted and enforced by or against or in favour of the Walker
 Gas Company as if this Act had not been passed and the transfer
 had not been made but subject as hereinafter provided.

Pending
 actions
 against
 Walker
 Company.

7. Except as by this Act otherwise provided all conveyances
 leases (if any) deeds contracts agreements and other instruments
 relating to the undertaking or affecting the Walker Gas Company
 in respect of the undertaking and in force at the date of the transfer
 shall so far as the same relate to the undertaking be as binding and
 of as full force and effect in every respect against or in favour
 of the Company and may be enforced as fully and effectually as
 if instead of the Walker Gas Company the Company had been a
 party thereto Provided that as between the Walker Gas Company
 and the Company the provisions of this section and the last preceding
 section of this Act shall not relieve the Walker Gas Company from
 any payment or liability which under the section of this Act the
 marginal reference to which is "Transfer to have effect as from
 first of January one thousand nine hundred and three" is to be
 made or discharged by the Walker Gas Company.

Contracts &c.
 of Walker
 Company to
 be binding on
 Company.

8. If the mayor aldermen and burgesses of the borough of
 Wallsend or the urban district council of Willington Quay exercise

For pro-
 tection of
 Wallsend

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Corporation
and Willing-
ton Quay
Urban Dis-
trict Council.

the power of purchase conferred upon them by the Electric Lighting Act 1888 they respectively shall not be required to purchase and take any generating station of the Company within their respective borough and district.

Directors
of Walker
Company
to furnish
Company
with names
of holders of
electricity
capital &c.

9. Immediately after the passing of this Act the directors of the Walker Gas Company shall furnish to the Company a statement containing the names and addresses and descriptions of the holders of the shares in the electricity capital of the Walker Gas Company immediately before the passing of this Act and the number of shares registered in the names of such holders respectively.

Trustees
executors
&c. can hold
substituted
shares.

10. Trustees executors and administrators and all persons legally holding shares in the electricity capital of the Walker Gas Company in respect of which ordinary and preference shares of the Company are by this Act allotted in any representative or fiduciary capacity may hold the ordinary or preference shares so allotted to them under the powers of this Act and are hereby indemnified for all acts bonâ fide done by them in pursuance of the provisions of this Act.

Unexercised
capital
powers of
Walker
Company
repealed.

11. All powers conferred upon the Walker Gas Company by the Act of 1899 for the raising of capital by the creation of shares or stock or by borrowing and remaining unexercised at the passing of this Act shall be and the same are hereby rescinded and sections 61 to 80 of the Act of 1899 and the Act of 1900 are hereby repealed.

Relation
between
price and
profits ap-
plicable to
dividend.

12.—(1) The Company shall not in any year out of the clear profits of the undertaking apply in payment of dividends upon their share capital a larger sum than would be sufficient to pay a dividend at the limited rate hereinafter mentioned on the aggregate amount of the par value of the shares to be allotted as aforesaid the said sum of two thousand five hundred pounds cash paid as part of the consideration for the transfer and any other capital of the Company for the time being expended upon the undertaking.

(2) If in any year the average net price per unit obtained by the Company for energy supplied by them throughout the area of supply is the standard price as defined by the Act of 1899 such limited dividend may for that year be at the rate of five per centum per annum but no more And if in any year such average net price shall be less than such standard price then such limited dividend may for that year exceed five pounds per centum per annum by five shillings for every one quarter of a penny by which such average net price shall be less than the standard price And

if in any year such average net price shall be more than such standard price then such limited dividend shall for that year be less than five pounds per centum per annum by five shillings for every one quarter of a penny by which such average net price shall exceed the standard price. Provided that the Company shall in no case be entitled to charge a higher price for energy than eightpence per unit as defined in the Third Schedule to the Act of 1899. A.D. 1903.

(3) The Company may in any year in addition to the amount by this Act authorised to be applied in payment of dividends out of the clear profits of the undertaking make good any deficiency in the amount so applicable in any previous year in which such amount was less than sufficient to pay a dividend at the rate of five pounds per centum per annum on the aggregate amount aforesaid.

13. If the clear profits of the undertaking in any year amount to a larger sum than would be equivalent to a dividend on the capital for the time being expended on the undertaking at the limited rate aforesaid the excess beyond the sum equivalent to such a dividend and subject to any provision for deficiencies as aforesaid may from time to time to the extent of one per centum per annum upon such capital be invested in any securities in which trustees are for the time by or under any Act of Parliament passed or to be passed authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the capital expended as aforesaid on the undertaking which sum shall form an insurance fund to meet the cost of the renewals of plant or any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances in relation to the undertaking which in the opinion of two justices due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the capital expended on the undertaking the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim or demand as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

If profits exceed amount applicable to dividend excess may be invested and form an insurance fund.

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Application
of excess of
profits over
amount
applicable to
dividend.

14. If the clear profits of the undertaking in any year amount to a larger sum than would be equivalent to a dividend at the limited rate aforesaid on the capital for the time being expended on the undertaking the excess or such portion of it as is not carried to the insurance fund or applied in making good deficiencies as aforesaid shall be carried to the credit of the profits of the undertaking for the next following year.

Power to
create re-
serve fund.

15. Where in any year the profits of the undertaking would admit of the payment of dividend on the capital expended on the undertaking at a rate exceeding five per centum per annum by reason of the average net price for energy supplied by the Company in such year being below the standard price then out of so much of the profits of the undertaking as shall be equivalent to such excess the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company may be invested in such securities as aforesaid and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be applicable to make good the deficiency in any subsequent year in which the clear profits of the undertaking shall be insufficient to provide a sum equivalent to a dividend at the limited rate aforesaid for that year on the capital expended as aforesaid on the undertaking and save as in this Act provided no sum shall in any year be carried by the Company to the said reserve fund out of the profits of the undertaking.

Separate
accounts to
be kept.

16. Separate capital and revenue accounts shall be kept by the Company of the undertaking.

The expenses of direction and management and any expenses common to the undertaking and any other undertaking or undertakings of the Company shall be from time to time apportioned between them as nearly as conveniently practicable in proportion to the amount of capital for the time being expended on the several undertakings:

Provided always that the Company may supply energy for the purposes of the undertaking from any generating station belonging to the Company and not forming part of the undertaking and may in respect of energy so supplied debit the undertaking with charges at the like rates as those charged to its customers or to authorised consumers taking approximately the like amount of energy.

PART III.

A.D. 1903.

AGREEMENTS.

17. The Company may enter into and carry into effect agree-
ments for the supply by the Company to the North Eastern Railway
Company of energy in bulk for motive power lighting and any
other purpose for use upon any part of that company's undertaking
within the counties of Northumberland and Durham and the city
and county of Newcastle-upon-Tyne including any railways of other
companies for the time being leased or worked by that company in
the said counties and city.

For supply
of energy
to North
Eastern
Railway
Company.

The energy supplied by the Company under this section shall
be so supplied and used as to prevent injurious affection whether by
induction or otherwise to the telegraphic lines from time to time
used or intended to be used by His Majesty's Postmaster-General or
the currents therein and any difference which arises between the
Postmaster-General and the Company supplying or as the case may
be using such energy as to compliance with this subsection shall
be determined by arbitration.

18.—(1) The indenture dated the twenty-seventh day of
March nineteen hundred and three between the Walker Urban
District Council (hereinafter in this section called "the council")
of the one part and the Company of the other part as altered and
set forth in the Schedule to this Act is hereby confirmed and made
binding upon the parties thereto.

Transfer of
electric
lighting
powers of
Walker
Urban Dis-
trict Council.

(2) As from the passing of this Act the undertaking of the
council under the Walker Electric Lighting Order 1899 (herein-
after in this section called "the Order") shall be transferred to
and vested in the Company subject to the provisions in the said
indenture contained and the Company shall be undertakers for the
purpose of and within the meaning of the Order Provided that—

(A) The following provisions of the Order shall not apply to
the Company (that is to say):—

Section 7 As to purchase and use of lands so far as
relates to the approval of the Local Govern-
ment Board and to the use for the purposes
of the said Order of any lands not specially
acquired for such purposes ;

Section 28 As to remuneration of electric inspector ;

Section 52 As to application of revenue ;

Section 53 As to application of capital moneys ;

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Section 54 So far as relates to the authentication of any notice order or document by the undertakers;

Section 67 Incorporating section 265 of the Public Health Act 1875; and

(B) The provisions of the Schedule to the Electric Lighting (Clauses) Act 1899 which apply only where the undertakers are not a local authority (except sections 2 3 4 5 and 34) shall apply to the Company and shall be deemed to be incorporated with the Order and those provisions shall be substituted for any provisions for the like purpose contained in the Order which are inconsistent therewith but such provisions shall be in addition to and not in derogation from the provisions contained in the said indenture.

(3) In the event of the council exercising the right conferred by the said indenture to purchase certain of the mains and works of the Company the undertaking shall vest in the council from the date when the purchase takes effect freed from all debts mortgages or other similar obligations of the Company or attaching to the undertaking and the powers of the Company in relation to the supply of electricity under the Order and this Act within the district of the council shall absolutely cease and shall vest in the council.

Amending
section 29 of
Act of 1902.

19. Section 29 of the Act of 1902 shall be read and construed as if the words "County of Durham Electric Power Supply Company" had been inserted therein instead of the words "County of Durham Power Supply Company."

PART IV.

CONNECTING MAINS.

Incorporation and
application
of Acts.

20. Subsection (c) of section 10 sections 11 to 20 60 69 72 to 77 79 80 and 82 of the Schedule to the Electric Lighting (Clauses) Act 1899 are incorporated with and form part of this Part of this Act and shall as far as applicable apply to the electric lines and other works authorised by this Part of this Act to be laid placed or constructed The provisions of the Electric Lighting Act 1888 and the other provisions of the Schedule to the Electric Lighting (Clauses) Act 1899 shall not apply to any electric lines or other works authorised by this Part of this Act to be laid placed or constructed by the Company or the County of Durham Company anything in this Act to the contrary notwithstanding Provided

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always that in construing the said incorporated provisions the expression "the special Order" shall mean this Part of this Act "the principal Act" shall mean the Electric Lighting Act 1882 "the undertakers" in relation to any powers and works to be executed by the Company shall mean the Company and in relation to any powers and works to be executed by the County of Durham Company shall mean the County of Durham Company and "the area of supply" shall mean in relation to the Company any area within which the Company are by this Part of this Act authorised to break up streets and lay down electric lines and works and in relation to the County of Durham Company shall mean the urban districts of Felling and Hebburn and the borough of Jarrow and the provisions of section 14 of the said Schedule shall (so far as the same relate to the Postmaster-General) apply to any cables or other works laid down and maintained in under across or over the River Tyne and the bed and foreshore thereof.

A.D. 1903.

21. The provisions of section 13 of the Electric Lighting Act 1882 and of section 12 of the Schedule to the Electric Lighting (Clauses) Act 1899 incorporated with this Act restricting the breaking up of railways and tramways where laid across or along any highway on the level or the roadway of or approaches to any bridge over any railway shall not apply to the Company :

As to crossing of railways tramways &c.

Provided that any electric line or work of the Company laid in any street or road in which there shall be any tramway of the corporation of Newcastle shall be laid in such part of the street or road and in such position in relation to the tramway as shall be agreed between the Company and the said corporation or as failing agreement shall be settled by the Board of Trade.

22. All works laid placed or constructed by the Company under the powers contained in this Part of this Act shall be part of the undertaking of the Company authorised by the Act of 1902.

Works to form part of Company's undertaking under Act of 1902.

23.—(1) Subject to the provisions of this Part of this Act applicable thereto the Company may for the purpose of conveying or transmitting electrical energy from any of their generating stations for the time being to any district or place or to any company body or person to which they now are or hereafter may be authorised to supply energy break up and otherwise interfere with any streets railways and tramways within the borough of Tynemouth the urban district of Walker and any area within which the Company are or may hereafter be authorised to supply energy as well as the gas and water mains and pipes sewers

Power to Company to lay connecting mains.

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Company's Act, 1903.

A.D. 1903

drains subways wires tubes and other works and things in or under such streets and may lay down therein and maintain use remove renew and repair electric lines and street boxes and apparatus for testing regulating measuring directing and controlling the supply of electric current or energy and for examining and testing the state of such electric lines boxes and apparatus Provided that the Company shall not under the powers of this Part of this Act break up or otherwise interfere with any railway or tramway except where laid across or along any highway on the level.

(2) Any electric lines laid down by the Company under the powers of this section in any street repairable by a local authority shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the Company and the local authority or as failing agreement shall be settled by the Board of Trade and the Company shall show on the plan of the works to be served on the local authority in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated herewith the route proposed to be taken and the dimensions and position of the proposed trench.

(3) Where the local authority of any borough or urban district object to the proposed line of route on the ground that it would traverse the principal thoroughfares or busy streets of their borough or district and indicate an alternative route or deviation which in the opinion of the Board of Trade does not involve undue increase of expenditure such alternative route or deviation shall be adopted Provided nevertheless that the provisions of this subsection shall not take away or prejudicially affect the rights of the Postmaster-General under section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 incorporated herewith and the provisions of that section shall apply in respect of such alternative route or deviation.

(4) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade shall certify that the action of the local authority in the matter has been unreasonable be paid by the Company.

(5) Nothing in this section shall authorise the Company to supply energy in the urban district of Walker.

For protec-
tion of Tyne-

24. The following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Tynemouth

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Company's Act, 1903.

(in this section respectively referred to as “the corporation” and “the borough”) shall unless otherwise agreed between the Company and the corporation have effect (that is to say) :—

A.D. 1903.
 mouth Cor-
 poration.

- (1) Notwithstanding anything in this Act the Company shall not except with the consent in writing of the corporation under their corporate seal either directly or indirectly supply energy for any purpose to or within the borough or execute any works within the borough for the purpose of supplying energy to consumers within the borough Provided that nothing in this section shall be deemed to prohibit the supply of energy by the Company to the North Eastern Railway Company :
- (2) The Company shall not without the consent in writing of the corporation break up any street or lay down any electric line or other work in or along any street except in the lines or routes shown on the plans of the borough signed in triplicate by Sir Henry Aubrey Fletcher Baronet the Chairman of the Committee of the House of Commons to whom the Bill for this Act was during its progress through Parliament referred and deposited in the Private Bill Office of the House of Commons :
- (3) The Company shall pay to the corporation the expenses incurred by them in keeping in repair the part of any street broken up by or on behalf of the Company for a period of two years from the reinstatement of the street :
- (4) In the event of the corporation widening improving or altering any streets within the borough after the Company's electric lines have been laid along the same the Company shall if so required by the corporation by notice in writing served upon them previously to the commencement of such widening improvement or alteration within one month after receipt of such notice take all necessary steps for altering the position of the said electric lines to suit the new or changed conditions under and in accordance with the provisions of sections 14 and 16 of the Schedule to the Electric Lighting (Clauses) Act 1899 :
- (5) The Company shall bear and pay to the corporation any additional costs which they may be put to in connection with the alteration reparation or renewal of any tramways sewers bridges mains cables wires pipes or other property for the time being of the corporation in consequence or by

[Ch. clxxiv.] *Newcastle-upon-Tyne Electric Supply* [3 EDW. 7.]
Company's Act, 1903.

A.D. 1903.

reason of the construction or maintenance of the Company's works :

- (6) The provisions of this section shall be supplementary to the other enactments contained in this Act and the Electric Lighting Act 1882 for the protection of the corporation and the tramways streets bridges sewers drains gas and water mains electric and other apparatus and works for the time being belonging to them.

For protec-
tion of cor-
poration of
Newcastle-
upon-Tyne.

25. The following provisions for the protection of the corporation of Newcastle (in this section called "the corporation") shall apply and have effect in relation to all electric lines or works laid down by the Company within the city of Newcastle-upon-Tyne under the powers of this Act:—

- (1) No electric line or work shall be laid down by the Company in any street road or highway except in the line or route indicated partly by a dotted red line and partly by red lines on the plan signed in duplicate by Frederic James Edge on behalf of the corporation and Charles Hesterman Merz on behalf of the Company or in such other line or route as the corporation and the Company may agree :

Provided that the Company shall along that part of the said line or route indicated by a dotted red line on the said plan lay any electric line or work in the conduits and manholes already laid by them unless such conduits and manholes shall at any time prove to be insufficient for the purposes of the Company. Provided further that the said conduits and manholes and any electric lines or works laid therein for the supply of the city under the Newcastle-upon-Tyne Electric Lighting Order 1893 shall not in the event of the corporation exercising their power of purchase of the undertaking of the Company under the Newcastle-upon-Tyne Electric Lighting Order 1893 be deemed to be part of the undertaking of the Company purchasable under that Order:

- (2) In the event of the corporation widening improving or altering any streets roads or highways along the said line or route or constructing or renewing any sewers tramways mains cables wires pipes or other property of the corporation in or under any such street road or highway after the Company's electric lines or works shall have been laid in or along any such street road or highway the Company if so required by the corporation by notice in writing served upon

- them previously to the commencement of such widening improvement or alteration or the construction or renewal of such sewers tramways mains cables wires pipes or other property of the corporation shall within one month after the receipt of such notice take all necessary steps under and subject to the provisions of sections 14 and 16 of the Schedule to the Electric Lighting (Clauses) Act 1899 for altering or removing such electric lines and works to suit the new or altered conditions :
- (3) The reasonable expense of the corporation incurred in altering the position of any electric lines or works of the Company under the powers of section 17 of the Schedule to the Electric Lighting (Clauses) Act 1899 shall be paid to the corporation by the Company :
- (4) The Company shall bear and pay to the corporation any costs in connection with the alteration reparation or renewal of any tramways sewers mains cables wires pipes or other property of the corporation or the reparation of any street road or highway which the corporation may incur or be put to in consequence or by reason of the construction or maintenance of the Company's works :
- (5) All works of or connected with the laying down by the Company of any electric line or work in any street road or highway shall be so executed as not to stop or unreasonably interfere with the traffic in such street road or highway and all such works shall be proceeded with and completed with all possible despatch :
- (6) The corporation shall not except in the case of their negligence be liable to any claim for damages in respect of any injury which may be caused to the electric lines or works of the Company through the use by the corporation or their agents of a steam roller or traction engine upon any street road or highway :
- (7) The Company shall not without the consent in writing of the corporation construct or lay any electric line or work under the roadway or footways of the Glasshouse Bridge or any arch connected therewith but shall carry such electric line alongside such bridge and arches in such manner as shall be agreed on between the corporation and the Company or as in default of agreement shall be settled by the Board of Trade :

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Company's Act, 1903.

A.D. 1903.
—

- (8) The Company shall not without the consent in writing of the corporation break up or otherwise structurally interfere with any sewer :
- (9) If owing to the abandonment of the undertaking or any part thereof any electric line or work laid under the powers of this Act under any street road or highway shall for the space of three years be disused and such disuser be proved to the satisfaction of the Board of Trade the said Board may if they think fit by order sanction the removal of such electric line or work and the corporation may (subject however to any agreement between the corporation and the Company providing for the removal of such electric line or work by the Company) forthwith remove the same with all reasonable care and the Company shall pay to the corporation the reasonable cost of such removal and of the reinstatement of any street road or highway or part of a street road or highway in which the same was laid and if the Company fail to pay such cost within one month after the ascertainment of and application for the same the corporation may without any previous notice to the Company (but without prejudice to any other remedy which they may have for the recovery of the amount) sell and dispose of the materials of the electric line or work so removed either by public auction or private sale and for such sum or sums and to such person or persons as they think fit and may out of the proceeds of such sale pay and reimburse themselves the reasonable cost of such removal and reinstatement of the street and the cost of the sale and the balance (if any) of the proceeds of the sale shall be paid over by the corporation to the Company :
- (10) Any electric lines or works laid down by the Company along the said line or route (except the said Glasshouse Bridge) shall be laid in a trench of such dimensions and in such position as may be agreed between the Company and the corporation or as failing agreement shall be settled by the Board of Trade and the Company shall show on the plan of the works to be served on the corporation in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated herewith the dimensions and position of the trench :
- (11) The reasonable and proper costs charges and expenses incurred by the corporation in relation to any reference to the Board of Trade under this section shall unless the

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Company's Act, 1903.

Board of Trade shall certify that the action of the corporation in the matter has been unreasonable be paid by the Company:

A.D. 1903.

(12) The provisions of subsections (2) (3) and (4) of the section of this Act the marginal note whereof is "Power to Company to lay connecting mains" shall not apply to the corporation or to any electric lines or works of the Company:

(13) If any difference arise between the Company and the corporation touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either of the parties in difference.

26.—(1) Subject to the provisions of this Part of this Act applicable thereto the County of Durham Company may for the purpose of obtaining electric current or energy from or supplying electric current or energy to the Company break up and otherwise interfere with any streets railways and tramways within the borough of Jarrow and the urban districts of Hebburn and Felling as well as the gas and water mains and pipes sewers drains subways wires tubes and other works and things in or under such streets and may lay down therein and maintain use remove renew and repair electric lines and street boxes and apparatus for testing regulating measuring directing and controlling the supply of electric current or energy and for examining and testing the state of such electric lines boxes and apparatus Provided always that the County of Durham Company shall not under the powers of this Part of this Act break up or otherwise interfere with any railway or tramway except where laid across or along any highway on the level Provided always that the County of Durham Company shall not exercise any of the powers of this Act within either of the urban districts of Felling and Hebburn for any other purpose than the laying of through mains in one trench or route only for the purpose of obtaining electric current or energy from or supplying electric current or energy to the Company except with the consent of the council of that district under its common seal.

Power to
County of
Durham
Company to
lay connect-
ing mains.

(2) Any electric lines laid down by the County of Durham Company under the powers of this section in any street repairable by a local authority shall be laid in such line or route and in a trench of such dimensions and in such position as may be agreed between the County of Durham Company and the local authority or as failing agreement shall be settled by the Board of Trade and the

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Company's Act, 1903.

A.D. 1903. County of Durham Company shall show on the plan of the works to be served on the local authority in accordance with the provisions of the Electric Lighting (Clauses) Act 1899 incorporated herewith the route proposed to be taken and the dimensions and position of the proposed trench.

(3) Where the local authority of the borough of Jarrow or of the urban district of Felling or of Hebburn object to any proposed line or route on the ground that it would traverse the principal thoroughfares or busy streets of their borough or district and indicate an alternative route or deviation which in the opinion of the Board of Trade does not involve undue increase of expenditure such alternative route or deviation shall be adopted. Provided nevertheless that the provisions of this subsection shall not take away or prejudicially affect the right of the Postmaster-General under section 14 of the Schedule to the Electric Lighting (Clauses) Act 1899 incorporated herewith and the provisions of that section shall apply in respect of such alternative route or deviation.

(4) The reasonable and proper costs charges and expenses incurred by any local authority in relation to any reference to the Board of Trade under this section shall unless the Board of Trade shall certify that the action of the local authority in the matter has been unreasonable be paid by the County of Durham Company.

For protec-
tion of
County of
Durham
Company.

27. Notwithstanding anything in this Act contained the Company shall not supply electrical energy for use within the county of Durham except to the County of Durham Company without the consent of the County of Durham Company under their common seal.

For protec-
tion of cor-
poration of
Jarrow.

28. The following provisions shall unless otherwise agreed between the mayor aldermen and burgesses of the borough of Jarrow (hereinafter referred to as "the corporation") and the Company apply and have effect :—

(1) Notwithstanding anything contained in this Act the Company shall not open or break up any streets or except as is provided by the section of this Act of which the marginal note is "Company may lay cables across River Tyne" lay down any electric mains lines or other works in the borough of Jarrow :

(2) The County of Durham Company shall not under the powers of this Act open or break up any of the streets in the borough of Jarrow except so far as may be necessary for laying down and maintaining one conduit from the point

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Company's Act, 1903.

where the cable of the Company reaches the southern side of that river to the point most convenient to the Durham Company for the purpose of obtaining or giving a supply in bulk from or to the Company from or to the generating station of the Company at Carville and such conduit shall be laid in a trench of such dimensions and in such position as may be agreed upon between the corporation and the County of Durham Company or as failing agreement may be settled by the Board of Trade and the reasonable and proper costs of the corporation in relation to any reference to the Board of Trade under this section shall unless the Board of Trade certify that the action of the corporation in the matter has been unreasonable be paid by the County of Durham Company.

A.D. 1903.

29.—(1) Subject as hereinafter in this section mentioned the Company may lay down place and maintain in under across or over the River Tyne and the bed and foreshore thereof at any place or places not exceeding six in number to be agreed upon in writing between the Company and the Tyne Improvement Commissioners (hereinafter called “the commissioners”) or failing agreement by such parties to be determined by an engineer to be appointed as mentioned in subsection (2) of this section between a line drawn across the said river in continuation of the boundary line between the rural districts of Castle Ward and Hexham and the boundary line between the urban district of Willington Quay and the borough of Tynemouth a cable or cables for the conveyance or transmission of electric current or energy and for that purpose may enter upon dredge and dig and may construct execute and maintain all necessary works in upon under or over the bed foreshores and banks of the River Tyne within those limits Provided that in the exercise of the powers contained in this section they shall not enter upon any private land without the consent of the owners lessees or occupiers thereof nor cause at any time any obstruction to the navigation of the river.

Company
may lay
cables across
River Tyne.

(2) The Company shall not enter upon or commence any work passing on in under or over or interfering with the said bed or foreshore (not being a cable carried within or over any bridge) until they have delivered to the commissioners at their principal office plans and sections in duplicate of such work and those plans and sections have been approved in writing by the commissioners Provided that if for two months after the delivery of such plans and sections the commissioners fail to signify to the Company in

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Company's Act, 1903.

A.D. 1903. writing their approval with or without alteration or disapproval of the same they shall be deemed to have approved thereof and if within the said period the commissioners disapprove of the said plans and sections or approve of the same with alterations and the Company consider such disapproval or alterations or any of them are unreasonable the question in difference shall failing agreement be determined by an engineer to be appointed by the Board of Trade on the application of the parties or either of them and the work may thereupon be carried out in accordance with the plans and sections as settled and approved by the said engineer and to the reasonable satisfaction of the commissioners' engineer and any reasonable costs incurred by the commissioners and any reasonable expense to which they are put in relation to any reference of any question under the provisions of this subsection to an engineer appointed by the Board of Trade shall be paid by the Company to the commissioners.

(3) If at any time after the execution thereof any work authorised by this Part of this Act or carried out by the Company whether previously approved by the commissioners or not shall in the opinion of the commissioners become an obstruction to or interference with the navigation of the river or the dredging widening deepening altering or improving of the bed or foreshore thereof or the execution of any works by the commissioners whether for the general improvement of the river or for the convenience or advantage of any particular person or otherwise howsoever or the execution of any riverside works by any riparian owner or occupier the Company shall within three calendar months of receiving notice in writing from the commissioners requiring them so to do remove such work and on failure by the Company to remove such work within such time the commissioners may remove it and the cost of such removal shall be paid on demand to the commissioners by the Company.

(4) In the event of the commissioners under the provisions of the last preceding subsection of this section requiring the removal of any work of the Company and of the Company subsequently delivering to the commissioners plans and sections pursuant to the provisions of subsection (2) of this section of a work proposed to be carried out by the Company in substitution for the work the removal whereof is so required the commissioners shall within fourteen days of the delivery of such plans and sections signify to the Company in writing their approval with or without alteration or disapproval of such plans and sections and if the commissioners

shall fail to so signify to the Company they shall be deemed to have approved of such plans and sections. A.D. 1903.

(5) Notwithstanding anything in this Part of this Act or any approval or consent given by the commissioners to the execution of any work by the Company—

(A) The commissioners may at all times hereafter execute and do all such works matters and things as they think fit in the way of or in connection with dredging widening deepening altering or improving the river or removing any wreck or obstruction therein provided that except in the case of removing any wreck or fortuitous obstruction and except in cases referred to in paragraph (c) of this subsection whenever any of such works matters or things will affect that part of the said bed and foreshore wherein or whereon any work authorised by this Part of this Act shall be laid or placed the commissioners shall give three calendar months' previous notice in writing to the Company of the commissioners' intention to do such work matter or thing :

(B) In the case of removing any wreck or fortuitous obstruction the commissioners shall give not less than one hour's notice to the Company of their intention in the manner provided in paragraph (c) of this subsection :

(c) The commissioners at all times hereafter may remove silt or other deposit from any part of the river and for the convenience or advantage of any particular person (including the commissioners themselves when they are riparian owners or occupiers) dredge widen deepen alter or improve any particular part or parts of the river and may do any other act or thing not referred to in this paragraph or in paragraph (A) of this subsection on giving to the Company at their Carville Power Station (or should it cease to exist at some office or place of business of the Company in the county of Northumberland or Durham) twelve hours' previous notice either verbally (including by telephone) or in writing (including by telegram) :

(D) The commissioners may in executing or doing any work matter or thing referred to in paragraphs (A) or (B) or (c) of this subsection cut break interfere with remove or destroy any work of the Company and shall not be liable to compensate the Company for any damage which may thereby be sustained by the Company unless such damage shall

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Company's Act, 1903.

A.D. 1903.

have been maliciously done or caused by the commissioners their officers or servants.

(6) The Company shall on demand pay to the commissioners any extra cost to which they may be put in carrying out any work matter or thing referred to in the last preceding subsection of this section by reason of the fact that in carrying it out the commissioners cut break interfere with remove or destroy any work of the Company.

(7) The Company shall place every cable or work (not being a cable carried within or over or attached to any bridge) which shall pass over the said bed and foreshore at such height above high-water mark as the commissioners may determine to be necessary for the safe navigation of the river and every cable or work which shall be carried within or attached to any bridge over the said bed or foreshore shall be so placed as not to lessen the clear headway of such bridge.

(8) The Company may provided they first obtain the consent thereto in writing of the commissioners exercise the power conferred by subsection (1) of this section in relation to the places therein referred to in relation to any additional place or places within the limits mentioned in the said section.

(9) The Company in making maintaining altering or removing any works authorised by this Part of this Act shall remove all material used or excavated by them and shall not allow any of such material or any other material to fall into or remain in the River Tyne or be left or placed on any part of the banks or foreshore thereof excepting with the consent of the engineer to the commissioners.

(10) All works whether of construction maintenance renewal removal or repair authorised by subsection (1) of this section shall be carried out so as not to interfere with the navigation of the River Tyne or any work of the commissioners and to the reasonable satisfaction of the engineer for the time being of the commissioners and his reasonable requirements in regard to the times and modes of carrying out any of such works shall be complied with by the Company.

(11) No claim shall be made by the Company against the owners of any vessel or against any other person in respect of any damage occasioned to any of the works of the Company passing in under across or over the River Tyne or the bed or foreshore thereof by such vessel or by any anchor used by or from such vessel or by

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Company's Act, 1903.

anything done or happening on or from such vessel in connection with or in the course of the user or navigation thereof unless such damage be occasioned by gross negligence or wilful misconduct. A.D. 1903.

(12) The Company shall be responsible for all damage occasioned by or arising from any of the Company's works in under across or over any part of the River Tyne or the bed or foreshore thereof and particularly (but not so as to restrict the foregoing generality) for all damage occasioned by or arising from any electric current passing from any of the Company's said works to any vessel or person and the Company shall pay full compensation in respect of any such damage to the person or persons damaged or in the event of any such damage causing the death of any person to such wife husband parent and child of such person as would be entitled to the benefit of any damages recovered from the Company in an action held to lie against the Company in respect of such death under the provisions of the Fatal Accidents Act 1846 or any statutory modification or extension for the time being in force of that Act.

(13) The Company shall pay to the corporation of Newcastle as compensation for the laying down placing and maintaining of any cable or the execution of any other work in upon under or over any part of the bed or foreshore of the River Tyne belonging to them in exercise of the power contained in this section such sum as in default of agreement shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement.

30. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

31. Except as by this Part of this Act expressly provided nothing in this Part of this Act contained shall take away divest abridge lessen alter or in any manner affect or prejudice any property or royalties rights estates duties tolls payments customs powers authorities jurisdictions privileges liberties franchises emoluments or advantages whatsoever of or belonging to the Most

Saving rights of Duke of Northumberland.

[Ch. clxxiv.] *Newcastle-upon-Tyne Electric Supply* [3 Edw. 7.]
Company's Act, 1903.

A.D. 1903. Noble Henry George Duke of Northumberland his heirs assigns or successors in the barony of Alnwick and the manors of Tyne-mouth Newburn Warkworth and Alnmouth or any of them as lord or lords thereof respectively or as grantee or grantees of the Crown or otherwise or of any future lord or ladies thereof respectively or of the assigns of such grantee or grantees or of his or their officer or officers in their respective duties within the same or any estate right title or interest of the said Henry George Duke of Northumberland his heirs and assigns as such grantee or grantees as aforesaid or otherwise in or to the bed and soil banks and shores of the River Tyne or any part thereof but except as aforesaid all such property royalties rights titles estates interests duties tolls payments customs powers authorities jurisdictions privileges franchises emoluments and advantages shall be exercised received and enjoyed and shall continue and be preserved whole and unimpaired as if this Part of this Act were not enacted.

For protec-
tion of Duke
of Northum-
berland.

32.—(1) The Company shall pay to the Most Noble Henry George Duke of Northumberland his heirs or assigns compensation for all damage sustained by him or them in the exercise of the powers conferred by the preceding section of this Act the marginal reference to which is “Company may lay cables across River Tyne” the amount of such compensation failing agreement to be determined in manner provided by the Lands Clauses Acts for the settlement of questions of disputed compensation.

(2) Any additional expense which the Most Noble Henry George Duke of Northumberland his heirs or assigns or his or their lessees may reasonably and properly incur in widening or altering any railway or works belonging to him or them by reason of the existence of any electric lines of the Company across or under the same shall be paid by the Company.

Saving rights
of Crown.

33. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter

any of the estates rights privileges powers or authorities vested in or enjoyed or exercisable by the King's Majesty. A.D. 1903.

34. The Company shall not under the powers of this Part of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and re-flows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be commenced without consent of Board of Trade.

35. Notwithstanding anything contained in this Part of this Act any cables pipes or wires to be laid or placed by the Company under or across any tidal water shall not be laid or placed at a less depth under or a less height over the tidal water than the Board of Trade may require.

As to position of cables placed in or over tidal water.

PART V.

MISCELLANEOUS.

36. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily.

Copy of Act to be registered.

37. Nothing contained in this Act shall prejudice or affect the right of the corporation of Newcastle to purchase the undertaking

Protecting rights of corporation

[**Ch. clxxiv.**] *Newcastle-upon-Tyne Electric Supply* [3 EDW. 7.]
Company's Act, 1903.

A.D. 1903. of the Company as the same was authorised by the Newcastle-upon-Tyne Electric Lighting Order 1893 scheduled to and confirmed by the Electric Lighting Orders Confirmation (No. 2) Act 1893 and such right to purchase such undertaking shall remain and be unaffected by any of the provisions of this Act.

Costs of Act. **38.** The costs charges and expenses preliminary to and of and incidental to preparing obtaining and passing this Act shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act. A.D. 1903.

THIS INDENTURE made the twenty-seventh day of March one thousand nine hundred and three between THE URBAN DISTRICT COUNCIL OF WALKER in the county of Northumberland (hereinafter called "the council") of the one part and THE NEWCASTLE-UPON-TYNE ELECTRIC SUPPLY COMPANY LIMITED (hereinafter called "the Company") of the other part.

WHEREAS the council were by the Walker Electric Lighting Order 1899 (hereinafter called "the Order") confirmed by the Electric Lighting Orders Confirmation (No. 7) Act 1899 authorised to acquire lands and construct works for the purpose of supplying electrical energy and to supply such energy within the district of the council and to exercise other powers incidental to the matters aforesaid :

And whereas for the purposes of the Order the Company have on behalf and at the expense of the council in pursuance of the provisions of articles of agreement made between the parties hereto and dated the 14th day of July 1900 constructed the works described and specified in the Schedule to the said agreement (which works are hereinafter referred to as "the specified works") :

And whereas the council have appropriated for the purposes of the Order a piece or parcel of land situate at Walker containing in the whole one thousand five hundred and twelve square yards or thereabouts bounded on the north and north-east by land belonging to the corporation of Newcastle and leased to William Brown on the west by an old waggon-way leading from Walker to Walker Gate and on the south partly by land belonging to the council and used for the purposes of a refuse destructor and partly by a road leading to the said destructor (which land is hereinafter referred to as "the appropriated land") and the Company have at their own expense erected a sub-station thereon :

And whereas the council have for the purpose of the Order and for the purchase of the appropriated land borrowed sums of money amounting in the aggregate to eighteen thousand five hundred and fifty-nine pounds :

And whereas it has been agreed between the parties hereto that the council shall for the period upon the terms and subject to the conditions hereinafter appearing assign and transfer to the Company their undertaking under the Order (including the said land and the specified works) and all rights powers privileges liabilities duties and obligations of the council under

[Ch. clxxiv.] Newcastle-upon-Tyne Electric Supply [3 EDW. 7.]
Company's Act, 1903.

A.D. 1903. the Order save and except the liability for the moneys borrowed as aforesaid subject to the conditions hereinafter contained :

Now this indenture witnesseth and it is hereby agreed between the parties hereto as follows :—

1. Subject to the conditions hereinafter contained the council hereby assign and transfer to the Company the undertaking of the council under the Order (including the appropriated land and the specified works) and all rights powers privileges liabilities duties and obligations of the council under the Order save and except the liability for moneys borrowed by the council for the purposes of the Order.

2. In consideration of the assignment and transfer herein contained the Company shall pay to the council (i) the amount of all interest and sinking fund payments or instalments of capital payable by the council in respect of the said sum of eighteen thousand five hundred and fifty-nine pounds borrowed by them for the purposes of the Order whensoever the same shall fall due and (ii) such sums as may be payable by the council within ten years from the 6th day of August 1900 for interest and sinking fund or instalments of capital in respect of the sum of fourteen thousand seven hundred pounds borrowed by the council for the purpose of the erection of a dust destructor and of the roadway and chimney connected therewith and all sums payable by the Company to the council under the provisions of this clause shall be paid at least seven days before the corresponding sums fall due for payment by the council.

3. The Company shall perform and observe the following covenants and conditions :—

- (A) They shall duly conform to all the requirements and provisions of the Order as amended by the Act for which the Company are now promoting a Bill and of the Electric Lighting Acts 1882 and 1888 :
- (B) They shall subject to section 21 of the Order at their own expense provide construct and lay a house service complete (exclusive of the meters and in accordance with the Board of Trade requirements) for each house works or other premises requiring a supply of electrical energy in respect whereof such house service is not comprised in the specified works :
- (C) They shall supply and fix all further services switches fuses and other appliances required in connection with services comprised in the specified works :
- (D) They shall at their own cost supply meters for hire in accordance with the provisions of the Order at rentals not exceeding the rentals charged by the Company in the city of Newcastle :
- (E) They shall maintain all the specified works and all extensions thereof and plant cables and other works and things constructed or provided and used for the time being by the Company for the purposes of the Order and shall make good all damages which from whatever cause may occur thereto and shall as and when the power of purchase of certain of the Company's mains and works hereinafter contained

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Company's Act, 1903.

arises deliver up the same to the council in good repair and condition to the reasonable satisfaction of the engineer or engineers for the time being of the council and the council may deduct from any funds in their hands on the Company's account or recover from the Company the cost of any works required to place the said specified works plant cables and other works and things in such good repair and condition : A.D. 1903.

- (F) They shall allow the engineer or engineers for the time being of the council at all reasonable times to enter upon and inspect any of the works comprised in the undertaking under the Order :
- (G) They shall if so required by any consumer within the district of the council whose premises are for the time being connected to the distributing mains of the Company (including the council) supply electrical energy to such consumer during the whole of the twenty-four hours of each and every day upon a system of supply and at a voltage approved or to be approved by the Board of Trade :
- (H) They shall keep the system of mains used by the Company for the purposes of the undertaking under the Order separate from any system of mains which they may provide in exercise of the powers conferred upon them by section 11 (Power to lay main cable in Walker Urban District) of the Newcastle-upon-Tyne Electric Supply Company's Act 1900.

4. The Company shall for the term of ten years from the 6th day of August 1900 maintain the council's dust destructor in good condition and repair and receive and destroy thereat daily at their own cost and expense the whole of the house and other refuse of the council's district which shall be brought and delivered to them by the council at the said destructor and shall consume each day's supply within twenty-four hours after receiving the same creating no nuisance and effecting complete combustion to the satisfaction of the Local Government Board The clinkers and ashes shall be removed by and shall be the property of the council The Company shall on the 6th day of August 1910 deliver up the dust destructor and the machinery therein in good working order and condition The Company shall also from time to time without unreasonable delay destroy so much of the existing heaps of refuse as the council may require them to do and if in the process of destruction of such heaps there should necessarily arise any extra expense for labour the council shall pay the same and as to the fact whether the said extra expense has arisen and the amount thereof the same shall in case of difference be settled by arbitration.

5. The charges to be made by the Company for the supply of electrical energy under the Order shall not exceed those hereunder specified (that is to say) :—

POWER—

Fourpence per unit for the first hour's use at the maximum demand per day (the average to be taken over periods of not less than three

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months) and one penny per unit after The average price charged throughout the district to consumers whose maximum demand does not at any time exceed 100 kilowatts shall not exceed twopence per unit.

PUBLIC LIGHTING—

(From dusk to dawn according to a schedule of times to be arranged)
Incandescent or glow lamps or other not less efficient lamps approved by the council giving an illumination of 16 British standard candle power 2*l.* 15*s.* 6*d.* per lamp per annum 25 British standard candle power 3*l.* per lamp per annum arc lamps of the enclosed type absorbing five hundred watts 15*l.* 10*s.* per lamp per annum for not less than one hundred lamps (any smaller number by agreement but not exceeding 20*l.* per lamp per annum) :

The above prices to include reflectors or diffusing globes lamps renewals of lamps carbons trimming cleaning repairs lighting and extinguishing but not posts or lanterns :

The council to have absolute discretion as to the number of public lamps to be lighted and to be at liberty to add to or reduce the same at any time on giving reasonable notice :

The council shall be at liberty at any time or times during three months in the summer to diminish the number of public lamps to be lighted by the Company to a number which shall mutually be agreed upon but not less than one half of the whole number of public lamps within the district of the council and the Company shall allow the council the sum of sixpence per week for each incandescent or glow lamp so diminished and such sum as may be agreed upon for each arc lamp so diminished or as failing agreement may be determined by arbitration.

PRIVATE LIGHTING—

The scale of charges for electrical energy for private lighting purposes shall be such that throughout the urban district of Walker the average price of electrical energy delivered to private consumers (including meter rentals) shall not exceed 4*d.* per unit.

FREE WIRING—

The Company shall at the option of the consumer carry out the necessary wiring for incandescent lighting and supply all ordinary suspension fittings including one switch per point free of initial expense to the consumer at an additional charge for current not exceeding one penny per unit :

Such installations shall meet the requirements of the various fire offices interested and shall be maintained by the Company at their own expense :

Provided always that the charges so to be made by the Company for electrical energy so far as lighting and small power consumers are concerned shall include all expenses of distribution and during the

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first ten years of the agreed term such charges shall not exceed the lowest charges for the time being charged by the Company to the large consumers of energy in Newcastle-upon-Tyne or any other district supplied by them for the time being and after the expiration of such ten years the prices to be charged by the Company to private consumers shall not exceed the lowest prices charged to similar consumers in any other district in which energy is supplied by the Company and the prices to be charged by the Company for public lighting shall not exceed the lowest prices for the time being charged by the Company for public lighting in any other district :

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The Company shall make such reasonable reduction in the price of electrical energy as they may from time to time find expedient they may either reduce the price generally or on a differential system of charge as may be agreed between them and the council.

6. The council may within six months after the expiration of a period of forty-two years from the 14th day of July 1900 or within six months after the expiration of every subsequent period of ten years or if at any earlier date the Company go into liquidation voluntarily (except for the purpose of reconstruction) or compulsorily by notice in writing require the Company to sell and thereupon the Company shall sell to the council and the council shall purchase and take over from the Company at their then value the said sub-station and any house services meters switches fuses free wiring fittings and other appliances provided or constructed by the Company for the purposes of the undertaking under the Order and not comprised in the specified works and shall purchase and take over upon the terms mentioned in section 2 of the Electric Lighting Act 1888 all electric mains in the district of the council constructed at the expense of the Company or the Company's assignors and belonging to the Company for the supply of electrical energy within the said district :

Provided that the council may if they think fit omit from such notice the said house services meters switches fuses and free wiring fittings and if they so omit them the council shall not be compelled to purchase the same Provided also that the powers of purchase under this clause shall be in lieu of the power of purchase under the Electric Lighting Act 1888.

7. If the council exercise the right of purchase under the last preceding article the Company shall forthwith deliver up the specified works in good condition and repair and without payment.

8. The Company shall be entitled until the council exercise the right of purchase hereinbefore contained to exercise for their own benefit all the rights of supplying electrical energy to the mayor aldermen and citizens of the city and county of Newcastle-upon-Tyne (hereinafter called "the Newcastle Corporation") and all other rights and privileges vested in the council under an agreement dated the 10th day of March 1902 and made between the Newcastle Corporation of the one part and the council of the other part and shall undertake and perform all the obligations devolving upon the council

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A.D. 1903. — under the said last-mentioned agreement and shall at all times keep the council effectually indemnified against all actions proceedings claims and demands whatsoever on the part of the said corporation in respect of such obligations or any of them and the council hereby assigns and transfers to the Company until such purchase as aforesaid all the benefits of the said last-mentioned agreement subject to the obligations thereof and hereby undertakes at the request and cost of the Company to appoint the Company as contractors for the council and to do perform and execute all such other things matters and assurances as may be necessary or expedient to enable the Company to obtain and enjoy the full benefit of clause 4 of the said last-mentioned agreement.

9. The council shall not until they exercise the right of purchase hereinbefore contained in any way sanction authorise or consent to the laying of any main or mains or the taking of any other steps whatsoever by any person or body other than the Company with the object of supplying electrical energy for any purpose whatsoever in the urban district of Walker or any part thereof or of carrying electrical energy for their own use through or along any thoroughfare in the said district or of carrying electrical energy through the said district to any other place but nothing in this clause shall prevent the council after the sixth day of August 1910 entering into any agreement with the Newcastle Corporation in respect of the laying or placing of electric mains and lines and the transmission and user of energy in connection with their tramways undertaking.

10. The costs of the council with respect to the negotiations for and the preparation and execution of these presents shall be paid to the council by the Company.

11. If any dispute arises between the council and the Company under this indenture it shall be referred to two arbitrators or their umpire under the Arbitration Act 1889.

12. This indenture is made conditionally upon the same receiving the confirmation of Parliament during the session of 1903 which confirmation the Company shall at their own cost in all respects use their best endeavours to obtain subject to such alterations if any as Parliament may think fit to make therein and the council shall at the request and cost of the Company render such assistance as they reasonably can to the Company to enable such confirmation to be obtained. Provided always that if any committee of either House of Parliament shall make any material alteration in this indenture it shall be competent to either party to withdraw the same in which case the same except as to the provisions thereof relating to costs and expenses shall be wholly void.

13. The provisions of the agreement dated the 14th day of July 1900 referred to in the recitals hereto so far as the same relate to any of the matters covered by these presents and in particular Part A clauses 4 and 5 and Part B clause 8 are hereby cancelled and rescinded. Provided always that for the purposes of the aforesaid agreement between the Newcastle

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Corporation and the council dated the 10th day of March 1902 the said A.D. 1903.
agreement of 1900 shall be deemed to continue in force until the date at
which the same would under the provisions thereof have expired.

In witness—

The seal of the Walker Urban District Council was affixed by—

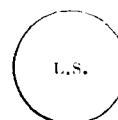
HENRY F. BERRY

Chairman.

In the presence of—

T. M. STURGESS

Clerk.



The common seal of the Newcastle-upon-Tyne Electric Supply
Company Limited was hereto affixed in the presence of—

J. H. ARMSTRONG

ROBT. SPENCE WATSON

Directors.

M. SHORT

Secretary.



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**CHAPTER clxxv.**

An Act to authorise the Empire Electric Light and Power Company Limited to construct tramways in Romford and the adjoining districts in the county of Essex and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS the construction of the tramways which are hereinafter described will be of public and local advantage :

And whereas the Empire Electric Light and Power Company Limited (hereinafter called “the Company”) are willing at their own expense to construct the said tramways and it is expedient that powers be conferred upon them for that purpose :

And whereas it is expedient that the Company be authorised to purchase lands compulsorily and to exercise the other powers hereinafter contained :

And whereas the council for the urban district of Romford in the county of Essex are by the Romford Electric Lighting Order 1900 authorised to supply electricity within the said urban district :

And whereas the said urban district council and the Company have entered into an indenture dated the twentieth day of April one thousand nine hundred and three for the transfer to the Company of the undertaking powers rights and privileges of the said council under the said Order and it is expedient that such indenture as set forth in the Second Schedule to this Act be confirmed and that provision be made as hereinafter contained with respect to such transfer :

And whereas plans and sections showing the situation lines and levels of the tramways by this Act authorised such plans showing the lands to be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the